



ABLE NATIONAL RESOURCE CENTER:
**Helping Fulfill the
Promise of ABLE**



NATIONAL RESOURCE CENTER
ACHIEVING A BETTER LIFE EXPERIENCE ACT

A Letter from the Director

As we embark on the second anniversary of the signing of the Stephen Beck Jr. Achieving a Better Life Experience (ABLE) Act, the ABLE National Resource Center (ANRC) would like to take a moment to reflect on the tremendous amount of work that has been dedicated to the implementation of this transformative law and of the contributions made by the Center and its supporters.

With the aim of providing individuals with disabilities, their families and all other ABLE-related stakeholders with objective information and reliable technical assistance, the Center was developed just weeks after the ABLE Act was signed into law. Led by National Disability Institute (NDI), and supported by more than 25 of the country's most prominent national disability-related advocacy organizations, the Center quickly established its expertise by convening the greater disability community, federal agencies, financial institutions and potential ABLE program administrators.



Over these past two years, the Center has led conversations with federal regulators, worked with individual states across the country to pass more than 45 ABLE-related pieces of legislation, held monthly ANRC meetings among the disability community, launched the country's most comprehensive and interactive ABLE-related website, reached thousands through bi-monthly webinars, spoke at various national conferences about the benefits of the ABLE Act, and much more.

The year 2016 marked the launch of the first ABLE programs, and 2017 promises to significantly increase the number of options for beneficiaries.

The Center is enthusiastic about the opportunities that lie ahead for people with disabilities and their families in their ability to save for a brighter economic future.

On behalf of the ABLE National Resource Center, I want to thank our member organizations for being a part of the collaborative. I also want to express my gratitude to our funders who, with their support, have made The Center possible: Bank of America, JPMorgan Chase & Co., Intuition ABLE Solutions, Wells Fargo and First National Bank Omaha.

An ABLE account is a down payment on freedom for millions of Americans with disabilities and their families. We welcome your support and investment in the ABLE National Resource Center to ensure our continued success and ability to provide the most current ABLE-related information and resources.

A handwritten signature in black ink, appearing to read "Michael M. Moore". The signature is fluid and cursive, with a long horizontal flourish extending to the right.

Executive Director, National Disability Institute

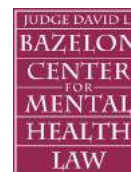
Sponsors



JPMORGAN CHASE & Co.



Supporters



A close-up photograph of a person's hands typing on a silver laptop keyboard. The person is wearing a red long-sleeved shirt. The laptop is resting on a blue textured surface. The background is slightly blurred, showing more of the person's arm and the laptop's trackpad.

The Significance of ABLE

ABLE represents the most transformative policy change since the passage of the Americans with Disabilities Act (ADA) in 1990. This is the first time Congress recognized that families raising a child with a disability and working-age adults with disabilities have additional significant costs associated with living with a disability. The law amends the tax code to encourage contributions to an ABLE savings account that allow investments to grow tax free. Distributions from the account can be used to cover extra costs related to education, employment, transportation, housing health care, technology and others that help improve independence and quality of life experience. In addition, ABLE accounts are not counted as a resource and do not, in most cases, adversely impact eligibility for resource-tested federal benefits such as Supplemental Security Income (SSI), Medicaid and food and housing assistance. With the first group of states opening ABLE programs in 2016, a new pathway to active community inclusion and participation has been created for millions of children and adults with disabilities who are now eligible, and have the opportunity, to open ABLE accounts.

“Great thought leadership, great practical leadership, could not have understood our customer without them.”

- INTUITION ABLE SOLUTIONS



The ABLE National Resource Center at Work

Power of Collaboration

Within two weeks after the signing into law by President Obama of the Achieving a Better Life Experience (ABLE) Act on December 14, 2014, National Disability Institute (NDI) stepped forward to fill an immediate need for information and technical assistance. The ABLE National Resource Center (ANRC) was established as a collaborative, bringing together the most prominent national disability-related advocacy organizations, to share resources and expertise with two common goals: 1) to accelerate implementation of the ABLE Act at a federal and state level; and 2) to provide consistent, independent and reliable information about the status of state ABLE programs to help eligible individuals with disabilities make informed choices. The ANRC organization representatives began meeting the first Friday of each month in January 2015. These meetings brought together the greater disability community with representatives of federal agencies, financial institutions, state Treasurers' offices and future state ABLE program administrators.

Educating ABLE-related Policy Makers

The Center continues to lead conversations with the various federal regulators responsible for developing ABLE-related rules, regulations and guidance. Since its inception, the Center has cultivated relationships with, and continues to advise on a regular basis, the Department of the Treasury, the Internal Revenue Service (IRS), the Social Security Administration (SSA), the Centers for Medicare & Medicaid Services (CMS), the Department of Education, the Department of Housing and Urban Development (HUD) and others. These conversations have been pivotal in the development of responsible rules, regulations and guidance that have acted to increase the ABLE Act's ability to respond to the needs of individuals with disabilities. Such examples include the

broad definition of "qualified disability expenses" developed by Treasury and IRS in their Notice of Proposed Rule Making (NPRM), and the allowance to use ABLE funds for housing expenses without deduction from a beneficiary's SSI developed by SSA in their guidance.

Additionally, the Center, in collaboration with its supporters, has worked to provide critical analysis of proposed State ABLE-related legislation, playing a substantial role in the passage of more than 45 ABLE-related state legislative proposals.

"The ANRC is an excellent resource center for updated and reliable information about ABLE accounts. I feel very comfortable referring parents and people with Down syndrome to the Center."

-NATIONAL DOWN SYNDROME CONGRESS

Expanding Reach

In March of 2016, the ANRC website launched and quickly became the go-to source for independent, objective information about federal and state ABLE implementation. The website, which has had more than half a million page views since its launch, is the country's most comprehensive website solely dedicated to ABLE-related information. The website is the home to multiple ABLE informative videos, archived webinars, published reports and notices and an interactive ABLE map which allows visitors to compare various ABLE programs in order to determine which program is best for them. Additionally, visitors to the site can provide input on how to improve the site and its content, and ask ABLE-related questions through the site's online portal.



Education and Outreach

In an effort to reach and educate as broad an audience as possible, the Center has routinely conducted online webinars every other month. These webinars, lasting approximately 90 minutes and archived on the Center's website, have allowed the Center to provide topic driven and tailored information to thousands of potential ABLE beneficiaries and their families. Additionally, the Center pulls from its robust group supporters and strong relations with ABLE-related federal agencies, to provide for diverse perspectives given by expert presenters and panelists.

Webinar topics covered during 2016 include:

- ▶ "ABLE Funds: Understanding the Investment Side of ABLE"
- ▶ "A Closer Look at the New ABLE Programs"
- ▶ "Becoming ABLE Ready: Choosing the Right Program for You"
- ▶ "ABLE Accounts, Trusts, Financial and Benefits Planning"
- ▶ "ABLE Implementation 2016"

The Center, through its hard work and dedication, has cultivated a level of expertise related to the ABLE Act and ABLE implementation that is unmatched. As a result, ANRC representatives have

been able to further extend their communication and outreach activities by accepting invitations to speak at state, regional and national conferences. Presentations about ABLE were made at more than 15 conferences in the last 12 months, helping improve awareness and understanding of the benefits of opening and effectively managing an ABLE account and the interests and needs of the disability community. These include the National Association of State Treasurers, College Savings Plan Network, TASH, APSE, National Disability Rights Network, Jewish Federation of North America and the National Association of Benefits and Work Incentive Specialists.

Stakeholder Convenings

The Center appreciates and values the significance of diverse collaboration across all major ABLE-related stakeholders. This is why, over this past year, the Center has taken substantial steps to grow and strengthen its already significant relationships with both state and federal ABLE-related government agencies and departments, 529A administrators and prominent financial institutions by convening and participating in exclusive stakeholder meetings and trainings. These meetings have covered a range of ABLE-related topics and issue areas including, but not limited to, marketing and outreach, research, public policy and technical assistance.

Various entities and groups who have participated in these meetings include disability organizations: National Disability Institute, Autism Speaks, The Arc of the United States, National Down Syndrome Society and World Institute on Disability; ABLE administrators: ABLE United, ABLEnow, Ohio STABLE Account Program, TN ABLE, ENABLE Program and ABLE Intuition Solutions; federal entities: Administration on Community Living (ACL), Centers on Medicare and Medicaid Services (CMS), Consumer Financial Protection Bureau (CFPB), FDIC, Internal Revenue Service (IRS), Social Security Administration (SSA), U.S. Department of Education, U.S. Department of Housing and Urban Development (HUD) and U.S. Department of Treasury; and financial sector: Federal Reserve of Atlanta and Federal Reserve of St. Louis.

Visibility

Traditional and social media continue to follow ABLE implementation at a state and federal level. The ANRC has become a significant go-to source for opinions and expert analysis on new developments, and has had more than 100 media mentions including *The New York Times*, *Forbes*, *Money Magazine*, *Bloomberg Finance*, *Disability Scoop*, *CNBC* and *Huffington Post*.

The Future

During the past two years, a half-million dollars-worth of resources have been invested to build the capacity and reach of the ABLE National Resource Center. The ANRC and its member organizations bring forward the investment of knowledge and resources through their diverse networks of people and affiliates nationwide to help the disability and financial communities learn about each others' needs and interests. Most importantly, we are committed to working together to benefit from the power of collaboration to accelerate ABLE implementation nationwide. This includes supporting the continued increase, in both enrollment and account contributions, with the purpose of addressing the individualized needs of ABLE account beneficiaries.

In 2017, as more states open ABLE programs, the ANRC will continue to provide individuals with disabilities, their families and other related stakeholders with information resources, education, training and other knowledge translation strategies, online and in person, that encourage and support investment in ABLE accounts.

ANRC will enhance learning opportunities for people with disabilities and their families, to not only help them make informed decisions about selection of an ABLE program and investment choices, but also improve their financial capability to set financial goals, increase their saving contributions and manage their accounts effectively.

THE CENTER WILL CONTINUE TO FOCUS ON FIVE AREAS OF COLLECTIVE IMPACT:

- 1 Serve as a facilitator between the disability sector, government and financial service companies to accelerate the effective design and availability of ABLE accounts nationwide.
- 2 Educate the disability community about the available opportunities to save and plan for a better economic future and quality of life experience through the establishment of ABLE accounts.
- 3 Educate government at the federal and state levels about consumer needs and challenges in establishing and/or managing an ABLE account.
- 4 Inform financial service companies about the needs and interests of the disability community to offer investment products for use with ABLE account resources.
- 5 Educate the public, policy makers and other relevant stakeholders about the positive impact of ABLE accounts at an individual and systems level and any needed changes for further policy development.



ABLE in Action

Alex Ghenis

Alex Ghenis first heard about ABLE through his job at the World Institute on Disability. He says the organization had done a wide array of financial education, including asset-building and work incentives, and ABLE was right at the front of their efforts. The more he learned about it, the more he felt encouraged to sign up.

Alex, who has a spinal cord injury, says having a disability affected his employment and asset-building opportunities in many ways. Among other things, including constraints related to his ability to earn due to income limits associated with being a beneficiary of Medi-Cal and In-Home Supportive Services, he faced savings limits that made him have to balance income and expenses. These constraints prohibited him from being able to save for his future and limited job opportunities simply because of his disability. Alex also has higher medical expenses that can affect his financial stability and economic future.

Alex says having an ABLE account opens up a huge amount of possibilities for his economic future.

“Being able to save isn’t just about putting money away; it’s about being able to hold a higher-paying job and build a career, to invest and even learn about investing and to have some financial peace of mind.”

He plans on using his ABLE account for a variety of expenses, whether for emergency expenses or everyday bills like rent, groceries and the occasional medical expense, such as a new wheelchair part not covered by insurance. Through his ABLE account, Alex also hopes to save enough to pay for large, life-changing expenses as they come along.

Alex shares that, when he began looking around for an ABLE account, it was important to him that it be easy to manage and also give him the ability to easily withdraw money. He finally chose Ohio’s STABLE account, which features four Vanguard funds with different risk profiles. Alex likes that he can choose a percentage mix of them and put together any combination of stocks and bonds that he wants. His Ohio STABLE account also has a debit card which makes it easy to withdraw money and spend it as he needs it – something he says is a huge plus and ultimately was the main deciding factor in his choice.

While Alex says he had a pretty good knowledge of what ABLE accounts offer overall when he began his research, he credits the account comparison feature available on the ABLE National Resource Center’s website with helping him in making his final decision.

Natalie Beck

Natalie Beck knew about the Achieving a Better Life Experience (ABLE) Act long before most people. When she was about three years old, and in pre-school, her father, Stephen Beck, Jr., began lobbying for ABLE. Natalie, who has Down syndrome, says he believed ABLE would help her secure a future for herself. She just celebrated her 17th birthday and is now a high school junior.

Unfortunately, Stephen died unexpectedly in 2014. However, the ABLE Act, which was renamed the Stephen Beck, Jr. Achieving a Better Life Experience Act, is his legacy to his daughter and to the millions of Americans with disabilities who can now save for their futures and pay for the extra expenses that living with a disability can bring.

Natalie feels that, with the passage of the ABLE Act, she can now secure a better economic future for herself. She was taught by her family, at an early age, that it was important to save for the future and she feels confident now that she will be able to do so.

By comparison, Natalie gives the example of her sister who is only three years older, and does not have a disability, who could save during her entire life to help pay for post-secondary education. Before ABLE, Natalie says, she could not save as her sister could for the future.

Natalie's goal is to be a nail technician, a profession she says that will give her income, meaningful employment and social opportunities.

Some of the disability-related expenses Natalie plans on saving for with her ABLE account include those related to job training to be a nail tech, a job coach and transportation to and from work.

When choosing an ABLE program, Natalie and her family looked at the track record of their state when managing 529 funds, the method available to



ABLE in Action

access ABLE funds and the risk involved with the investment accounts.

“My family encouraged my sister and me to set career goals. My sister is using her 529 account to help cover the cost of obtaining a nursing degree. I would like to use my ABLE account to go to cosmetology school. I want to be independent with a job and my own apartment.”

Natalie says she and her family depend on the ABLE National Resource Center website for the latest information on ABLE, and that they have found the state-by-state comparison very helpful as they've looked at different states' ABLE programs.

Five Things You Need to Know about ABLE

1 What is an ABLE account?

ABLE Accounts are tax-advantaged investment accounts that help qualified individuals with disabilities, and their families, save for disability-related expenses. Anyone can contribute to an individual's ABLE account; however, all contributions combined are not to exceed \$14,000 in any given tax year. Additionally, the funds in the account are not taken into consideration when determining eligibility for means-tested federally-funded benefits such as Supplemental Security Income (SSI) and Medicaid.

2 Why the need for ABLE accounts?

Millions of individuals with disabilities and their families depend on a wide variety of public benefits for income, health care and food and housing assistance. Eligibility for many of these public benefits (SSI, SNAP, Medicaid) require meeting a means or resource test that limits eligibility to individuals to report more than \$2,000 in cash savings, retirement funds and other items of significant value. To remain eligible for these public benefits, an individual must remain poor. For the first time in public policy, the ABLE Act recognizes the extra and significant costs of living with a disability and provides a savings tool to address it.

3 Who is eligible to open an ABLE account?

The ABLE Act limits eligibility to individuals with significant disabilities with an age of onset of disability before turning 26 years of age. If you meet this age criteria and are also receiving benefits already under SSI and/or SSDI, you are automatically eligible to establish an ABLE account. If you are not a recipient of SSI and/or SSDI, but

still meet the age of onset disability requirement, you could still be eligible to open an ABLE account if you meet Social Security's definition and criteria regarding significant functional limitations and receive a letter of certification from a licensed physician. You need not be under the age of 26 to be eligible for an ABLE account. You could be over the age of 26, but must have had an age of onset before the your 26th birthday.

4 What can the funds in the ABLE account be used for?

Funds in the account can be used to purchase "qualified disability-related expenses." A "qualified disability expense" is any expense related to the designated beneficiary's blindness or disability that assists him/her in increasing and/or maintaining their health, independence and/or quality of life. These may include expenses related to education, housing, transportation, employment training and support, assistive technology, personal support services, health care expenses, financial management and administrative services and other expenses.

5 What happens to the funds in the ABLE account when the beneficiary passes away?

Upon the death of the beneficiary, the state in which the beneficiary lived may file a claim to all or a portion of the funds in the account equal to the amount in which the state spent on the beneficiary through their state Medicaid program. This is commonly known as the "Medicaid Payback" provision and the claim could recoup Medicaid-related expenses from the time the account was opened.



ABLE NATIONAL RESOURCE CENTER

ACHIEVING A BETTER LIFE EXPERIENCE ACT

The ABLE National Resource Center (ANRC) is a collaborative that brings together the investment, support and resources of some of the country's largest and most influential national disability organizations in an effort to accelerate the design and availability of ABLE accounts to meet the needs of individuals with disabilities and their families.

Managed by National Disability Institute (NDI), the Center's goal is to provide consistent, reliable information concerning the benefits of an ABLE account. In addition, the Center aims to educate individuals with disabilities and their families, state government and legislatures, and financial service companies, including financial planners and attorneys who focus on trust and estate planning, about ABLE's potential impact on quality of life experience.

WHAT DO WE PROVIDE?

- Educational materials, including free online webinars
- Training and technical assistance activities
- Analysis of ABLE-related public policy and legislation
- Research on ABLE account use and operation of state established ABLE savings programs
- Side by side comparisons of different state programs
- Nationwide dissemination networks

www.ablenrc.org

For more information, contact Chris Rodriguez, Senior Public Policy Advisor, at crodriguez@ndi-inc.org.

“ANRC has been the national leader in providing resources about the ABLE Act and ABLE Programs. They have done an excellent job keeping individuals with disabilities informed about what is happening in their state and on a national level. I have had the pleasure of working directly with ANRC staff through the launch of ABLE United and commend them on their dedication, enthusiasm, and strong work ethic in serving an underserved population.”

- ABLE UNITED

“The ANRC has been an incredible resource for individuals and families, as well as for states tasked with building out ABLE plans. I have turned to ANRC staff on countless occasions to glean insights from the disability community, thoughts on federal legislation and a better understanding of the economic realities of those living with a disability. The ANRC is helping to make ABLE plans strong economic empowerment tools for people with disabilities throughout the United States.”

- OREGON ABLE SAVINGS PLAN

“ABLE NRC puts the power of choice directly into the hands of people with disabilities to increase financial and independent living outcomes!”

- WORLD INSTITUTE ON DISABILITY

“The ABLE National Resource Center provides valuable information which helps individuals and their families gain more confidence in their decisions related to community living and economic well-being.”

- ADMINISTRATION FOR COMMUNITY LIVING

“2016 has brought a whirlwind of developments related to the ABLE Act. The ABLE National Resource Center has brought all of the stakeholders – from the disability community, financial institutions, relevant state and federal agencies, and the community at large – into conversation together. This dialogue has helped us all gain broader insight into the promises and challenges of the ABLE Act. As more and more states launch ABLE programs and more people with disabilities open ABLE accounts, The Arc looks forward to continuing to work with the ABLE National Resource Center to support people with disabilities to realize the goal of economic self-sufficiency.”

- THE ARC OF THE UNITED STATES

“State administrators have been working hard to launch ABLE programs for people with disabilities and the ABLE National Resource Center has been an invaluable partner to states during this process. Several states have opened programs in 2016 and I expect this trend to continue in the next several months. I commend the ANRC for all they have done to make ABLE a reality.”

- COLLEGE SAVINGS PLAN NETWORK

National Disability Institute (NDI) is a national nonprofit organization dedicated to building a better economic future for people with disabilities. The first national organization committed exclusively to championing economic empowerment, financial education, asset development and financial stability for all persons with disabilities, NDI affects change through public education, policy development, training, technical assistance and innovative initiatives. NDI and its Real Economic Impact Network have helped more than 2.3 million people with disabilities receive nearly \$2.3 billion in tax refunds and credits. To learn more, visit www.realeconomicimpact.org.



1667 K Street, NW
Suite 640
Washington, DC 20006
202.296.2040
realeconomicimpact.org



RealEconImpact



@RealEconImpact